

**Delegation from  
Burkina Faso**

**Represented by  
University of Washington  
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### **Position Paper for the Commission on Crime Prevention and Criminal Justice**

The topics before the Commission on Crime Prevention and Criminal Justice are: 1) Advancing Crime Prevention, Criminal Justice, and the Rule of Law: Toward the Achievement of the 2030 Agenda, and 2) Strengthening Crime Prevention and Criminal Justice Responses to Violence Against Women. Burkina Faso is committed to strengthening the role of CCPCJ on the issues before it and looks forward to promoting enhanced cooperation amongst Member States in order to reach consensus and take concrete action.

#### **I. Advancing Crime Prevention, Criminal Justice, and the Rule of Law: Toward the Achievement of the 2030 Agenda**

Crime problems are driven by a series of factors, including poverty, inequality, the rate of urbanization, political transitions, urban density, population growth and poor urban planning and extremism. Increased trafficking in the region as well as poverty and the lack of opportunities make it easy to enroll individuals in low level criminal activities. Rural exodus is rampant and the unemployed find themselves trapped in suburbs of major cities, contributing to very high levels of urban crime. The challenge is immense and requires a comprehensive and engaged development strategy with economic support. The goal is to achieve the 2030 Agenda for Sustainable Development that draws together the strands of peace, the rule of law, human rights, development and equality into a comprehensive and forward-looking framework.

Mainly in the Sahel-Saharan region of Burkina Faso, money laundering and terrorism have been a huge threat in Burkina Faso when it comes to criminal justice, crime prevention, and the rule of law. International financial mechanisms used to money launder these crime proceeds provide financial support for terrorism. Furthermore, the destabilizing effect of such terrorist groups and their impact on development and security in the Sahel region of Burkina Faso are extremely serious. Criminal activities have reached a level that poses a threat to governance and social stability in the entire region and beyond.

When it comes to money laundering and financing terrorism, Burkina Faso has an operational Financial Intelligence Unit (FIU) that accesses a wide range of information. Internationally, the government joined comprehensive anti-corruption conventions that deal with money laundering and financing terrorism, the United Nations Convention against Corruption (UNCAC). Furthermore, the government of Burkina Faso increased the size of its special terrorism detachment Groupement des Forces Anti-Terroristes (GFAT) in the country's north and joined the newly created G5 Sahel Joint Force to fight terrorism and criminal trafficking groups with regional neighbors Chad, Mali, Mauritania, and Niger. Moreover, Burkina Faso is part of the United Nations Office on Drugs and Crime (UNODC) and United Nations Counter-Terrorism Office (UNOCT) to assist Member States in their struggle against crime and terrorism

Burkina Faso has suffered from a lack of mechanisms for criminal justice matters and is also affected by a lack of mutual legal assistance (MLA) capacity and networks, which obstructs cooperation and coordination efforts to combat transnational organized crime such as terrorism. When it comes to money laundering, in practice, the criminal investigative and prosecutorial agencies do not seem to prioritize money laundering investigations. Investigations and prosecutions of proceed generating offences focus more on the underlying offences, resulting in very few money laundering prosecutions.

With the government of Burkina Faso joining in, the United Nations Office on Drugs and Crime (UNODC) and United Nations Counter-Terrorism Office (UNCT) should cooperate as a team putting speaking and putting all their ideas together how to maintain the criminal justice system even further and deal with terrorism in Burkina Faso. In addition, they should all cooperate with United Nations Convention against Corruption (UNCAC) to get more advice and solutions to prevent money laundering. That way, Burkina Faso will get more assistance and strengthen their ability entirely to deal with the financial and terrorist crimes in the country.

## **II. Strengthening Crime Prevention and Criminal Justice Responses to Violence Against Women**

Women are often treated under the law in Burkina Faso, and both adult and juvenile criminal justice systems may frequently use deprivation of liberty as the primary sentencing option. Violence against women is, unfortunately, frequently seen as a private matter that takes place behind closed doors, and there are sometimes significant legal shortcomings to investigate and prosecute domestic abuses.

According to Human Developments Report in 2018, out of 189 countries, Burkina Faso ranks 183<sup>rd</sup> in Women Equality Index. Female genital mutilation, beatings, early and forced marriages, rape and sexual harassment constitute some of the most serious violations of the basic rights of girls and women in Burkina Faso. The government has been trying hard to prevent it, but they lack the effort.

The national strategy for the promotion and protection of girls 2017-2026 and the national strategic plan for the elimination of female genital mutilation in Burkina Faso are at place, and the government has been taking tangible and concrete steps to protect women from domestic violence, early and forced marriage, sexual harassment, and female genital mutilation. Internationally, Burkina Faso joined a big amount of conventions in the UN such as the United Nation Population Fund (UNFPA), Office of the United Nations High Commissioner for Human Rights (OHCHR), and again the United Nations Office on Drugs and Crime (UNODC) to help address struggles against protecting women from sexual violence.

As hard as the government is trying to address violence against women, concerns were raised about the continued practice of female genital mutilation and the normalization of domestic violence, as well as about the lack of harmonization between different laws which addressed various forms of violence against women. In the area of health, Experts were worried about the precarious situation of maternal and infant mortality, noting that maternal mortality rates stood at 300 per 100,000 live births. Abortion was criminalized and unsafe abortion was among the leading causes of maternal mortality.

To address these issues that the government has been fighting for several years, the United Nation Population Fund (UNFPA), Office of the United Nations High Commissioner for Human Rights (OHCHR), and United Nations Office on Drugs and Crime (UNODC) should collaborate all together as a team, not separately, more often than not and daily with Burkina Faso. If all these UN Conventions work together with the government, assistance in strengthening crime prevention and criminal justice system responses to violence against women would be a lot more comprehensive and tougher. First convention gives substantial funds to deal with the issue the next speaks for ideas how to deal with women rights, and the other gives provisions on how to deal with the violence and crime harassing and harming women.